

25STCV33301 25STCV33301

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Case Number: 25STCV33301 Hearing Date: August 27, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

LINDA

WRIGHT,

Plaintiff,

vs.

ERROL

MANSION, et al.,

Defendants.

Case No.:

25STCV33301

Hearing Date:

August 27, 2026

Hearing Time: 8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT RANDOLPH ASSOCIATES, LLC'S
DEMURRER TO PLAINTIFF'S COMPLAINT

DEFENDANT RANDOLPH ASSOCIATES, LLC'S MOTION
TO STRIKE PLAINTIFF'S COMPLAINT

Background

On November 13, 2025,
Plaintiff Linda Wright ("Plaintiff") filed this action against Defendants Errol
Mansion and Randolph Associates, LLC ("Randolph") (jointly, "Defendants"),
alleging three causes of action for (1) negligence, (2) constructive eviction,
and (3) violation of Inglewood Municipal Code § 8-133.

Randolph now demurs to the
complaint and moves to strike portions of the complaint. Plaintiff opposes.
Randolph replied.

On June 5, 2026, the Court ordered Randolph's counsel to meet and
confer with Plaintiff, and if the parties could not resolve the issues raised
in the demurrer and motion to strike, Randolph's counsel was to file a
declaration discussing the efforts. The Court notes that counsel filed a
declaration on June 9, 2026 attesting to the parties' verbal discussion and
inability to resolve the issues in the demurrer and motion to strike.
Accordingly, Randolph complied, and the Court will now hear the demurrer and motion
to strike.

Request for Judicial
Notice

Plaintiff objects to Randolph's
request for judicial notice of Exhibits A, B, and D. Plaintiff asserts these
are not authenticated and do not appear to fall into any categories allowing
for judicial notice. However, Randolph filed a notice of errata authenticating
the documents. The Court finds the notice of errata with the declaration
sufficient. Additionally, the documents Plaintiff objects to are all official
records of the City of Inglewood and the U.S. Department of Housing and Urban

Development. Accordingly, the Court grants Randolph's request for judicial notice of Exhibits A, B, C, and D.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) In testing the sufficiency of the complaint, the court assumes the truth of properly pleaded factual allegations, facts reasonably inferred from those expressly pleaded, and judicially noticed matters. ((Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court, (1984) 153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-10.)

Under Code of Civil Procedure section 430.10 subdivisions (e) and (f), a demurrer may be filed if the pleading is uncertain or does not state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Discussion

A. Allegations of the Complaint

Plaintiff's complaint pleads, inter alia, that she "was the tenant of a unit at 8402 S 2nd Ave, Inglewood, CA 90303 ('the Property'), until the Property was

rendered uninhabitable as a result of a fire in the Property's attic," and the property is owned by Defendants. (Compl., ¶ 1.) "Throughout the Plaintiff's tenancy at the Property, the Property lacked fire safety equipment. The Property contained no fire extinguishers or fire alarms. Moreover, Defendants Errol Mansion and Randolph Associates failed to conduct routine inspections of the Property." (Compl., ¶ 2.) "Consequently, on or around December 11, 2023, an electrical failure in the attic, in addition to a malfunction involving the natural gas horizontal attic furnace located in the attic, caused the fire. The fire instantly sparked out of control, charred the Plaintiff's belongings, and rendered the Plaintiff's unit uninhabitable. Shortly after, the Plaintiff's unit was red tagged and Defendants required Plaintiff to vacate, rendering her homeless with no home." (Compl., ¶ 3.) "After the fire, Gwen Randolph, an employee of Defendant Randolph Associates, LLC, never offered relocation assistance, but rather blamed Plaintiff for the fire. Gwen Randolph attempted to shift fault towards the Plaintiff, and told Plaintiff that Defendant Randolph Associates should have evicted Plaintiff a long time ago." (Compl., ¶ 4.) "Plaintiff lost her longtime home and all her possessions in the fire. In sum, Plaintiff has sustained considerable damages, all of which this action hopes to redress." (Compl., ¶ 5.)

B.

First Cause of Action for Negligence

"The elements of a negligence cause of action are duty, breach, causation and damages." (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

Plaintiff's complaint alleges that

"Defendants owed Plaintiff a general duty of care arising out of the landlord-tenant relationship, including but not limited to providing Plaintiff with a safe, habitable, legal, and tenantable dwelling, complying with the California Civil Code, conducting routine maintenance and repairs, and refraining from conduct which harmed or reduced the value of Plaintiff's tenancy;" however, "Defendants breached these duties by, among other ways, failing to prevent the conditions which led to the fire which ravaged the Property; failing to maintain the Property's electrical system and gas furnace; failing to secure or repair the furnace's access panel and burner assemblies; and failing to install fire safety equipment at the Property." (Compl., ¶¶ 15-16.)

Randolph

contends that "Plaintiff's Complaint alleges Defendant breached its duty to use care by failing to maintain the Property and failing to prevent the conditions which led to the fire but does not specifically state what those conditions were, and failing to maintain the Property's electrical system and gas furnace, but does not provided any factual details concerning the electrical system and how Defendants failed to maintain the gas furnace or how and when Defendant failed to secure or repair the furnace's access panel and burner." (Dem., 6:22-27.) Randolph further contends that "Plaintiff's vague and conclusory allegations do not establish that Defendant breached its duty of care toward Plaintiff. Moreover, Plaintiffs allegations that defendant failed to repair and secure the furnace's access panel and burner assemblies and failed to install fire safety equipment do not make it so and Plaintiff provides no facts to support this allegation." (Dem., 6:28-7:3.)

Plaintiff

asserts that she adequately pleads negligence, because the "complaint pleads that the fire was caused by Defendant's failure to maintain a heater in the attic. In addition to the facts pled in their Complaint at ¶¶1-5..., Plaintiffs' Complaint lays out the basis for a negligence claim, element by element." (Opp., 4:9-12.) However, the opposition does not address Randolph's allegations that Plaintiff's complaint is conclusory. Although Plaintiff pleads that a fire broke out, she does not plead ultimate facts showing how Randolph acted negligently, beyond her allegation that "Randolph Associates failed to conduct routine inspections of the Property" (Compl., ¶ 2), which Randolph's request for judicial notice demonstrates that the property was inspected a few months prior to the fire.

Accordingly,

the demurrer to the first cause of action is sustained with leave to amend.

C.

Second Cause of Action for Constructive
Eviction

"A constructive eviction

occurs when the acts or omissions to act of a landlord, or any disturbance or interference with the tenant's possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which

they were leased, or has the effect of depriving the tenant for a substantial period of time of the beneficial, enjoyment or use of the premises.” (Groh v. Kover's Bull Pen, Inc. (1963) 221 Cal.App.2d 611, 614.)

Plaintiff's complaint alleges

that “Defendants' conduct led directly to a fire which rendered Plaintiffs homeless. Subsequent to the fire, Defendants failed to repair the Property, forcing Plaintiffs to vacate the Property permanently and move elsewhere.” (Compl., ¶ 20.) Further, Plaintiff alleges that “Defendants' conduct in failing to maintain their Property, and allowing it to catch fire as a result, amounted to a constructive eviction of Plaintiffs, in that Defendants conduct forced the Plaintiff's unit to be red-tagged and forced Plaintiff to surrender possession of her apartment and move elsewhere.” Randolph first asserts that “Plaintiff failed to specify facts to support the allegation and conclusion that Defendant breached an express or implied covenant or engaged in any action or omission depriving Plaintiff of the benefit to her lease and thereby constructively evicting her. Plaintiff simply concludes Defendants' conduct led directly to the fire[] which rendered Plaintiffs' homeless, and subsequent to the fire, Defendants failed to maintain and repair the Property, however Plaintiff provides no facts to support this claim.” (Dem., 7:10-15.)

Additionally, Randolph quotes

Plaintiff's lease, which states, inter alia: “If the Premises, or structure in which they are located, are totally or partially destroyed and become unavailable for occupancy due to fire ... or other casualty beyond the control of Owner and Renter, for a period of twenty (20) days or more, then, and only then, any party hereto may terminate this Lease Agreement with written notice to all other parties. If this tenancy is not so terminated, ... the sole remedy of Renter shall be an abatement of the rent, proportionate to the interference with full use and enjoyment, until the Premises are again available for occupancy.” (RJN Ex. C, p. 5, § 9.) Based on this, Randolph asserts that “[t]here are no facts alleged to demonstrate why the provisions of the Lease which limit Plaintiff to an abatement of her rent would not apply to the circumstances in this case where the fire which started in Plaintiff's unit destroyed the Property and effectively terminated Plaintiff's Lease.” (Dem., 7:24-27.)

Regarding

the lease, Plaintiff's opposition contends that “[t]his is not an appropriate argument for a demurrer. The question is whether Plaintiff pled facts

sufficient to establish a right to recover damages for constructive eviction, not what damages a court might award if the case proceeds to trial. In any event, Plaintiff did not sue for breach of contract and Defendant does not explain why a limit on contractual damages could limit Plaintiff's ability to recover damages for a different cause of action." (Opp., 5:20-25.) Plaintiff does not address the conclusory argument, beyond asserting that she pled sufficient facts.

Similar

to the second cause of action, the Court finds that Plaintiff's complaint does not sufficiently allege ultimate facts as to how Randolph's actions led to the fire that constructively evicted Plaintiff. As Randolph notes in reply, "Plaintiff's reliance on a generalized 'notice-pleading' standard does not excuse the failure to plead essential facts with reasonable precision. Defendant's Demurrer sets out that a complaint must allege facts, not conclusions, and that uncertainty is a valid ground where material facts are left to surmise." (Reply, 3:5-8.) Plaintiff generally pleads the elements for each cause of action, but this is insufficient; Plaintiff must plead ultimate facts that adequately comprise the causes of action of her complaint.

Accordingly,

the demurrer to the second cause of action is sustained, with leave to amend.

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D.

Third Cause of Action for Violation of Inglewood

Municipal Code § 8-133

Under

Inglewood Municipal Code section 8-133, a landlord may not retaliate or harass a tenant. Specifically for retaliation, "[n]o Owner may threaten to bring, or bring, an action to recover possession of a Rental Unit, cause the Tenant to quit a Rental Unit involuntarily, serve any notice to quit or notice of termination of tenancy, decrease any Housing Services or increase the Rent where the Owner's intent is to retaliate against the Tenant."

(Inglewood Mun. Code, § 8-133, subd. (a).)

Regarding harassment, inter alia, “[n]o Owner shall, with respect to any Tenancy subject to the protections of this Article, do any of the following in bad faith: (1) Interrupt, terminate, or fail to provide Housing Services required by contract or by State, County or local housing, health or safety laws; (2) Fail to perform repairs and maintenance required by contract or by State, County, or local housing, health or safety laws; (3) Fail to exercise due diligence in completing repairs and maintenance once undertaken; (4) Abuse the Owner’s right of access into a Rental Unit as that right is specified in California Civil Code Section 1954[;]... (9) Take action to terminate any tenancy including service of any notice to quit or other eviction notice or bring any action to recover possession of a Rental Unit based upon facts which the Owner has no reasonable cause to believe to be true[;] ... (10) Interfere with a Tenant’s right to quiet use and enjoyment of a Rental Unit as that right is defined by California law.” (Inglewood Mun. Code, § 8-133, subd. (b).)

Plaintiff’s

complaint alleges, “Defendants, acting in bad faith and in an effort to force Plaintiff out of the Property, failed to prevent the hazardous conditions that led to the fire; failed to properly maintain the Property’s electrical system and gas furnace; failed to secure or repair the furnace’s access panel and burner assemblies; and failed to install any fire-safety equipment at the Property.” (Compl., ¶ 26.)

Plaintiff’s

complaint also cites Inglewood Municipal Code section 8-123, subdivision (b), alleging that it which states that “[a]n Owner of a Rental Unit shall provide permanent Relocation Assistance to displaced Tenants if the Owner issues a termination notice based on any grounds authorized by Section 8-121, subsections (a)(11) through (a)(14).

The amount of proposed Relocation Assistance, including the breakdown and calculation of the total, shall be included in the termination notice.” Additionally, under Inglewood Municipal Code section 8-123, subdivision (a), “[i]f a Tenant has vacated a Rental Unit in compliance with a governmental agency’s order to vacate, or due to health or safety conditions, and regardless of whether the Owner has served a notice to temporarily terminate a tenancy, the Owner shall pay temporary Relocation Assistance to the displaced Tenant household.”

Plaintiff

alleges that she “was forced to vacate the Property after it was red tagged by

city officials due to health and safety conditions following the attic fire. Because the unit was rendered uninhabitable and Defendants thereafter terminated Plaintiff's tenancy pursuant to an order to vacate under Inglewood Municipal Code § 8-121(a)(12), Defendants were required to provide Plaintiff with permanent relocation assistance under Inglewood Municipal Code § 8-123(b). Defendants Errol Mansion and Randolph Associates, LLC willfully failed to provide Plaintiff with any such assistance. Defendants' failure to comply with these statutory obligations constitutes a violation of local law and further evidence of their bad-faith conduct toward Plaintiff." (Compl., ¶ 28.)

As for the third cause of action, Randolph asserts that "Plaintiff's Complaint contends Defendant acted in bad faith by failing to provide Plaintiff with permanent relocation assistance, however Plaintiff has not alleged that Plaintiff's unit was rendered uninhabitable due to the fire, and as stated herein and requested as judicial notice, the Property Lease does not provide for permanent relocation relief where there the fire caused the Property's destruction and lease termination. Further, Plaintiff has failed to demonstrate how Defendant coerced, intimidated or engaged in fraudulent actions to force Plaintiff to vacate the Property." (Dem., 8:7-13.)

Plaintiff's opposition contends that "[w]hether Plaintiff's lease entitles Plaintiff to receive relocation assistance has nothing to do with whether the law entitles Plaintiff to receive relocation assistance. Defendant seems to argue that the lease is a sort of pre-dispute waiver of Plaintiff's statutory right. To the extent that Paragraph 9 of the lease contravenes Plaintiff's rights under the law, that provision is void." (Opp., 6:5-9.) Regarding Inglewood Municipal Code section 8-123, Plaintiff asserts that "Plaintiff pled that Defendant terminated her tenancy 'pursuant to an order to vacate under Inglewood Municipal Code § 8-121(a)(12).' Complaint ¶28. Defendant makes no argument to the contrary and does not address this clear statutory language, other than to argue that the lease contradicts it." (Opp., 6:19-22.)

In response, Randolph contends that "Plaintiff's § 8-133 theory in Opposition pivots to municipal relocation obligations and a governmental vacate order, but the Complaint does not plead facts showing

harassment, coercion, intimidation, or fraud by Defendant, nor facts establishing a statutory relocation duty within § 8-133 on the allegations made. Defendant's Demurrer explains that § 8-133 prohibits harassment and Plaintiff allegations of bad faith appear to revolve around her allegations that she was entitled to permanent relocation assistance. Plaintiff's Opposition does not provide any facts pointing to harassment, coercion, or fraud other than her claim that she is entitled to permanent relocation assistance. Defendant has demonstrated that Plaintiff's lease does not provide for permanent relocation as Plaintiff's remedy under the lease was limited to rent abatement where the fire caused the Property's destruction and lease termination. The Opposition does not point to pleaded facts curing these elements." (Reply, 4:19-5:1.) Randolph's reply also asserts that when a tenant is at fault for the conditions that necessitate vacating, the tenant is not entitled to assistance. (See Inglewood Mun. Code, § 8-123, subd. (h).) However, Plaintiff's complaint does not allege that she was negligent or that she caused the fire. Accordingly, this provision is inapplicable here.

Plaintiff's

opposition properly points out that regardless of the lease's limiting terms, the contract cannot override Plaintiff's express statutory rights. The Court finds that Plaintiff adequately pleads that Randolph did not provide her relocation assistance under Inglewood Municipal Code section 8-123. However, Plaintiff's third cause of action specifically asserts a violation of Inglewood Municipal Code section 8-133. As noted above, section 8-133 relates to bad faith, harassment, retaliation, and, more specifically, failure to correct or fix defects in the apartment. For the same reasons noted in the first and second causes of action, Plaintiff's facts as pled here are conclusory and do not adequately explain Randolph's failure to service the property and protect against the fire. Although Plaintiff cites multiple statutes under the third cause of action, the cause of action itself references only one specific statute, which Plaintiff did not plead sufficient facts to satisfy. Accordingly, the Court sustains the demurrer to the third cause of action.

Motion to Strike

A. Legal Standard

A court may "[s]trikeout any irrelevant, false, or

improper matter inserted in any pleading” or “[s]trike out all or any part of any pleading “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subds. (a)-(b)) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.)

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.” (Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175, internal quotations omitted.)

B. Discussion

Based on the Court’s decision to sustain the demurrer to Plaintiff’s complaint in its entirety, the motion to strike is denied as moot.

Conclusion

Based on the foregoing, Randolph’s demurrer to the first, second, and third causes of action is SUSTAINED with leave to amend. Randolph’s motion to strike is DENIED as MOOT.

Plaintiff is ordered to file and serve an amended complaint, if any, within 20 days of the date of this Order. If no amended complaint is filed within 20 days, the Court orders Randolph to file and serve a proposed judgment of dismissal within 30 days of the date of this Order.

Randolph is ordered to give notice of this Order.

DATED: August

27, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court